

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Nick Collins

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the training, certification, and recognition of constables and civil deputy sheriffs.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Nick Collins</i>	<i>First Suffolk</i>	
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>12/4/2025</i>

SENATE No.

By Mr. Collins, a petition (accompanied by bill) (subject to Joint Rule 12) of Nick Collins for legislation relative to the training, certification, and recognition of constables and civil deputy sheriffs. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the training, certification, and recognition of constables and civil deputy sheriffs.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 116 of chapter 6 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the word “general”, in line 19, the
3 following words:- ; 1 member to be appointed by the Massachusetts Bay Constables Association,
4 Inc.; 1 member to be appointed by the Massachusetts Constables Association, Inc.

5 SECTION 2. Section 1 of chapter 6E of the General Laws, as so appearing, is hereby
6 amended by inserting after the definition of “Officer-involved injury or death” the following
7 definition:-

8 “Other law enforcement officer”, any officer whose statutory or common law authority
9 includes enforcement of civil, criminal, administrative or judicial orders and who does not meet
10 the definition of law enforcement officer, including, but not limited to, civil deputy sheriffs,
11 constables, court officers, harbormasters, parole officers, probation officers, corrections officers;

provided, however, that such individual has completed training and in-service education as determined by the commission and the Massachusetts Police Training Committee; provided further, for the purposes of this chapter, “other law enforcement officer” shall include any officer of an elected or appointed constable, whether operating individually or under a legal association or corporation.

SECTION 3. Section 4 of said chapter 6E, as so appearing, is hereby amended by adding the following subsection:-

(k) The commission shall develop flexible training options for other law enforcement officers not defined as full-time police officers, including part-time, weekend or evening formats. Said training programs shall be sufficient to meet statutory and regulatory certification standards and shall require not less than 40 hours of in-service training annually.

SECTION 4. Said chapter 6E is hereby further amended by inserting after section 4 the following section:-

Section 4A. There shall be within the commission a division of certification of other law enforcement officers, which shall oversee the certification, training and oversight of other law enforcement officers as defined in section 1.

SECTION 5. Said chapter 6E is hereby further amended by inserting after section 8 the following section:-

Section 8A. There shall be within the division of police standards a division of other law enforcement officer standards, which shall promulgate rules, regulations and standards specific to officers certified under section 4A.

SECTION 6. Chapter 29 of the General Laws is hereby amended by inserting after section 2LLLLLL the following section:-

SECTION 2MMMMMM. There shall be established and set up on the books of the commonwealth a special revenue fund known as the Civil Deputy Sheriffs and Constables Training Fund to be administered by the secretary of public safety and security. The fund shall receive all revenue from the surcharge established under section 4C 1/2 of chapter 262. Revenues shall be dedicated to the training and certification of other law enforcement officers pursuant to section 4A of chapter 6E.

SECTION 7. Chapter 262 of the General Laws is hereby amended by inserting after section 4C the following section:-

Section 4C 1/2. Any party entering a complaint, petition or other civil action in any court of the commonwealth in which an initial filing fee is payable shall pay to the clerk of said court a surcharge of \$2 in addition to the fee otherwise required by this chapter. All surcharges collected pursuant to this section shall be deposited into the Civil Deputy Sheriffs and Constables Training Fund established under section 2MMMMMM of chapter 29.

SECTION 8. The Massachusetts peace officer standards and training commission and the municipal police training committee shall jointly establish curricula specific to the statutory roles, functions and enforcement authority of each category of officer as defined in section 1 of chapter 6E of the General Laws. The curricula shall be developed by a committee that consists of 8 persons appointed by the governor from a list of not less than 4 nominees provided by the Massachusetts Bay Constables Association and not less than 4 nominees provided by the Massachusetts Constables Association. Members of the commission shall be professionals from

institutions of higher education, the judiciary, the Massachusetts Bar, and recognized subject matter experts with demonstrated experience and knowledge in the relevant field. The curricula shall be modeled after the model used for harbormasters under 515 CMR 16.00. The Massachusetts peace officer standards and training commission shall promulgate regulations not later than 6 months after the effective date of this act where applicable to codify the curricula.

SECTION 9. Notwithstanding any general or special law to the contrary, any civil deputy sheriff or constable who has served by election or appointment for not less than 10 consecutive years prior to December 31, 2020, shall be exempt from the certification requirements of chapter 6E of the General Laws.